

IN THE SUPREME COURT OF BANGLADESH

HIGH COURT DIVISION

(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 4059 of 2018

In the matter of:

An Application under section 115(1) of the Code of Civil Procedure, 1908

And

In the matter of:

Present

Mr. Justice Mamnoon Rahman

Dudu Mia being dead his legal heirs:

1(a) Fatema Begum and others.

...Petitioners.

-Vs-

Obaidul Karim.

...Opposite party.

Mr. George Chowdhury, Adv.

...For the petitioners.

None appears

...For the opposite party.

Heard & Judgment on: **The 6th December, 2023**

In an application under section 115(1) of the Code of Civil Procedure, 1908 rule was issued calling upon the opposite party to show cause as to why the order No. 12 dated 16.09.2018 passed by the Divisional Special Judge and Special district Judge, Chittagong in Other Appeal No. 97 of 2017 rejecting application of the petitioner for amendment of the plaint of Other Suit No. 145 of 2003, should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

None appears on behalf of the opposite party to oppose the rule.

I have heard the learned Advocate for the petitioners. Perused the impugned judgment and order, revisional application, grounds taken thereon as well as necessary papers and documents annexed herewith.

On perusal of the same, it transpires that the petitioner as plaintiff instituted Other Class Suit No. 145 of 2003 impleading the opposite party as defendant. The trial court after hearing the parties and considering the facts and circumstances evidence both oral and documentary decreed the suit in favour of the plaintiff-petitioner vide judgment and decree dated 30.04.2012. Being aggrieved by and dissatisfied with the aforesaid judgment and decree passed by the trial court the present opposite party preferred Miscellaneous Appeal being No. 97 of 2017 before the court of the learned District Judge, Chattogram and the same was pending for disposal before the Divisional Special Judge and Special District Judge, Chattogram. During pendency of the appeal the present petitioner pressed an application for amendment of the plaint as evident in Annexure-F. The lower appellate court after hearing the parties and considering the facts and circumstances rejected the application vide the impugned judgment and order. It transpires that the petitioner who is the plaintiff and got decree in the trial court filed the application dated 17.04.2018 for amendment of plaint, for adding certain statement and also for deleting certain statement. But while rejecting the application the lower appellate court totally failed to consider the same in its true perspective and passed the impugned order rejecting the application stating that since this is an old case and just to delay the disposal of the appeal the instant application was filed which is not at all acceptable in the eye of law. When a party pressed an application under Order 6 rule 17 of the Code of Civil Procedure, 1908 the court of law

has to see in its true perspective and allow the same if the same did not change the nature and character of the suit vigorously, but in the present case in hand the lower appellate court failed to do so. As such I find substance in the instant rule.

Accordingly, the rule is made absolute. The impugned judgment and order passed by the court below is hereby set aside and the case is sent back on remand. However, the court below is directed to hear and dispose of the application for amendment strictly on merit by applying its independent and judicial mind within 30(thirty) days from the date of receipt of the instant judgment and order without fail.

The office is directed to communicate the judgment with a copy of this judgment to the concerned court below at once.

(Mamnoon Rahman,J:)

Emdad. B.O.